

From: Jacob Bevier bevier19jac@icloud.com

Subject: Re: Next Steps while MNDA is being reviewed

Date: November 19, 2025 at 3:58:42 PM

To: Schubkegel, Fred L. flschubkegel@varnumlaw.com

Cc: jbglm2@gmail.com jbglm2@gmail.com,  
sarahjbraganini@gmail.com sarahjbraganini@gmail.com, DeRegnaucourt, Staci  
R. srderegnaucourt@varnumlaw.com

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Fred and Staci,

Your assumptions are correct, I filed myself, see the attached application and rudimentary pictures that I included in my filing. Application # 63/723,626

The sketches were done after the filing but could maybe be used for the new filing or filing the non provisional.

Please let me know if you need any additional information.

Very respectfully,

Jacob Bevier

7604903416

On Nov 19, 2025, at 3:43 PM, "Schubkegel, Fred L." <flschubkegel@varnumlaw.com> wrote:

Hello, Jake and John,

See below from my partner, Staci DeRegnaucourt:

*Fred,*

- 1. The client is correct a provisional cannot be extended. The client must file a non-provisional or the provisional will go abandoned and we will need to start from a new priority date with a*

*fresh filing. However, if the subject matter has been disclosed since the initial provisional filing, failure to file a non-provisional case by the deadline may render the rights into the public domain. Inventors have only one-year from a public disclosure to file their priority document.*

- a. I cannot look-up the provisional as I am not the attorney of record and provisional filings are not made public, but if the provisional was filed by the client directly pro se it is likely to be nearly impossible to prepare a non-provisional in compliance with USPTO standards in 2-3 days (I strongly suspect this is the case). If the provisional was a robust provisional filed by a firm with a claim set and decent formal or informal drawings it may be possible to accommodate the timing, but would be a significant challenge and there would likely be expensive and significant clean-up work to be done after the fact.*
- 2. The client is correct on the NDA language and is right to push back. We can advise, but Spray is attempting to get a work for hire arrangement that would allow them to de-source the client. This is not uncommon, but also not acceptable.*
- 3. I have two other meetings tomorrow that span from 12:30 – 3:00pm so your suggested time will unfortunately not work.*

|                                                  |                                                                                 |
|--------------------------------------------------|---------------------------------------------------------------------------------|
| -                                                | Fred L. Schubkegel                                                              |
| Varnum LLP                                       | Partner                                                                         |
| 211 East Water Street, Suite 400                 | Direct: 269-553-3514                                                            |
| Kalamazoo, Michigan 49007                        | Email: <a href="mailto:fschubkegel@varnumlaw.com">fschubkegel@varnumlaw.com</a> |
| <a href="http://varnumlaw.com">varnumlaw.com</a> |                                                                                 |

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From: Jacob Bevier <bevier19jac@icloud.com>

Sent: Wednesday, November 19, 2025 3:29 PM

To: [jbglm2@gmail.com](mailto:jbglm2@gmail.com)

Cc: Schubkegel, Fred L. <flschubkegel@varnumlaw.com>; [sarahjbraganini@gmail.com](mailto:sarahjbraganini@gmail.com)

Subject: Re: Next Steps while MNDA is being reviewed

All,

If we are scheduling a call for tomorrow can we wrap up NLT 2:30? That would be ideal for me as my attorney in another matter changed times on me and we meet at 2:30.

Hopefully that still aligns with everyone else's schedule.

Thanks for your understanding.

Very respectfully, Jacob Bevier 7604903416

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On Nov 19, 2025, at 1:44 PM, [jbglm2@gmail.com](mailto:jbglm2@gmail.com) wrote:

Fred,

Between the attachment and the email chain you should be able to see the issue.

The attachment is our NDA and the highlighted red inserts are what we proposed to Spray, the contractor.

We can get on a call from 1:30 p.m. to 2:30 p.m. EST tomorrow. Will that work?

John Braganini

269-330-4205

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**From:** Jacob Bevier <[bevier19jac@icloud.com](mailto:bevier19jac@icloud.com)>

**Sent:** Wednesday, November 19, 2025 1:11 PM

**To:** [jbglm2@gmail.com](mailto:jbglm2@gmail.com)

**Cc:** Sarah Braganini <[sarahjbraganini@gmail.com](mailto:sarahjbraganini@gmail.com)>

**Subject:** Re: Next Steps while MNDA is being reviewed

Very respectfully, Jacob Bevier 7604903416

On Nov 19, 2025, at 12:52 PM, [jbglm2@gmail.com](mailto:jbglm2@gmail.com) wrote:

Send me that NDA document.

John Braganini

269-330-4205

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**From:** Jacob Bevier <[bevier19jac@icloud.com](mailto:bevier19jac@icloud.com)>

**Sent:** Wednesday, November 19, 2025 12:48 PM

**To:** [jbglm2@gmail.com](mailto:jbglm2@gmail.com)

**Cc:** [sarahjbraganini@gmail.com](mailto:sarahjbraganini@gmail.com)

**Subject:** Fwd: Next Steps while MNDA is being reviewed

Hey John,

Long time, I hope Italy was awesome and welcome back.

Sarah just texted me and said to loop you in on this. An NDA shouldn't be this difficult. They are aware of the requirements that we need to meet as far as spray height, diameter, actuator etc. The way their NDA reads we can't sign as is.

Some guidance here would be much appreciated.

Very respectfully, Jacob Bevier 7604903416

Begin forwarded message:

**From:** Andrew Wills <[awills@sprayproducts.com](mailto:awills@sprayproducts.com)>

**Subject:** RE: Next Steps while MNDA is being reviewed

**Date:** Nov 19, 2025 at 9:19 AM

**To:** Jacob Bevier <[bevier19jac@icloud.com](mailto:bevier19jac@icloud.com)>, Jim Johnson  
<[jjohnson@sprayproducts.com](mailto:jjohnson@sprayproducts.com)>

**Cc:** Joyce Stasky <[joyce@sprayproducts.com](mailto:joyce@sprayproducts.com)>, "[sarahjbraganini@gmail.com](mailto:sarahjbraganini@gmail.com)"  
<[sarahjbraganini@gmail.com](mailto:sarahjbraganini@gmail.com)>

Good Morning Jacob,

Thanks for the feedback.

At this time, we are unable to modify the MNDA we offered to you.

To be clear, we are interested in the aerosol manufacturing for you and not the IP of your device.

If you are able to execute the MNDA provided as is we can proceed and if not that is okay too.

We are not trying to be difficult but as you can imagine we field many requests for unique developments and do have policies in place for our agreements we need to follow.

Thanks,

AW

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**From:** Jacob Bevier <[bevier19jac@icloud.com](mailto:bevier19jac@icloud.com)>

**Sent:** Tuesday, November 18, 2025 12:41 PM

**To:** Andrew Wills <[awills@sprayproducts.com](mailto:awills@sprayproducts.com)>; Jim Johnson <[jjohnson@sprayproducts.com](mailto:jjohnson@sprayproducts.com)>

**Cc:** Joyce Stasky <[joyce@sprayproducts.com](mailto:joyce@sprayproducts.com)>; [sarahjbraganini@gmail.com](mailto:sarahjbraganini@gmail.com)

**Subject:** Re: Next Steps while MNDA is being reviewed

Good afternoon Andrew and Jim,

I reviewed the NDA with my counsel, and there are only two clarifications they require before I can sign. These aren't changes to the business terms — just standard IP protection language for founders who are bringing an existing patent-pending product to a manufacturer for evaluation.

While we are coming to Spray for assistance with the formulation, we're still not entering this as a typical vendor seeking standard filling or contract manufacturing services. We are approaching this as a company with a **patent-pending invention** that includes proprietary mechanisms, geometry, and product functionality already in development. In these situations, industry standards handle IP differently because the inventor must retain rights to their pre-existing and independently developed technology.

At the moment, Section 4 includes language stating that:

- "any protocol, software, algorithm, technique and/or methodology developed during its association with Spray shall be the property of Spray,"
- the other party "shall not file any application for seeking intellectual property rights," and
- the other party "shall not oppose" any intellectual property application filed by Spray.

This wording is not acceptable for companies presenting patented or patent-pending technology, because it can unintentionally transfer ownership of the inventor's IP or restrict their ability to protect improvements. These provisions are appropriate for vendors or contractors working *for* Spray, but not for an external company sharing its own proprietary invention *with* Spray for evaluation and potential collaboration.

To avoid that misunderstanding, my counsel requires two standard clarifications:

1. Each party retains ownership of their pre-existing and independently-developed intellectual property.
2. Any jointly developed work would require a separate written agreement outside of the NDA.

These points are industry-standard whenever a company shares a patent-pending concept with a potential manufacturing or formulation partner. They don't expand our rights or limit Spray's rights in any way — they simply ensure that the NDA operates strictly as a confidentiality agreement, not an unintended IP assignment.

I would also like the NDA to explicitly state that **this version supersedes any previous version** circulated or discussed, to ensure both parties are aligned on the final governing document.

I hope these terms are acceptable and something you can work with. We're excited to move forward and want to keep everything clean and clear on both sides, so this is really just a legal housekeeping step. I'm happy to sign immediately once those clarifications are included.

Very respectfully, Jacob Bevier 7604903416

On Nov 13, 2025, at 3:04 PM, Jacob Bevier <[bevier19jac@icloud.com](mailto:bevier19jac@icloud.com)> wrote:

Understood, I will get back with you hopefully tomorrow, if not early next week once we speak with legal.



Ready to get this thing going!

Very respectfully, Jacob Bevier 7604903416

On Nov 12, 2025, at 8:56 AM, Andrew Wills <[awills@sprayproducts.com](mailto:awills@sprayproducts.com)> wrote:

Jacob,

We are not going to be able to execute this with your edits. In particular section 4 is problematic.

I can assure you that the language in our original MNDA protects your IP and our's.

Thanks,

AW

---

**From:** Jacob Bevier <[bevier19jac@icloud.com](mailto:bevier19jac@icloud.com)>

**Sent:** Tuesday, November 11, 2025 4:29 PM

**To:** Andrew Wills <[awills@sprayproducts.com](mailto:awills@sprayproducts.com)>

**Cc:** Jim Johnson <[jjohnson@sprayproducts.com](mailto:jjohnson@sprayproducts.com)>; Sarah Braganini

<[sarahjbraganini@gmail.com](mailto:sarahjbraganini@gmail.com)>; Joyce Stasky <[joyce@sprayproducts.com](mailto:joyce@sprayproducts.com)>

**Subject:** Re: Next Steps while MNDA is being reviewed

Please find attached a tracked-changes version aligning Spray's Mutual NDA with the previously executed Brag & Bev form—updated governing law (Michigan), clarified Purpose, and reciprocal IP ownership.

Very respectfully, Jacob Bevier 7604903416

On Nov 11, 2025, at 3:14 PM, Andrew Wills  
<[awills@sprayproducts.com](mailto:awills@sprayproducts.com)> wrote:

Jacob,

I am going to need a redline/marked up NDA to review if you are making changes to the document I sent. Or, we can proceed with our MNDA that I sent in the attached.

Thanks,

AW

---

From: Andrew Wills

Sent: Monday, November 3, 2025 10:09 AM

To: 'Jacob Bevier' <[bevier19jac@icloud.com](mailto:bevier19jac@icloud.com)>

Cc: Jim Johnson <[jjohnson@sprayproducts.com](mailto:jjohnson@sprayproducts.com)>; Sarah Braganini

<[sarahjbraganini@gmail.com](mailto:sarahjbraganini@gmail.com)>; Joyce Stasky <[joyce@sprayproducts.com](mailto:joyce@sprayproducts.com)>

Subject: RE: Next Steps while MNDA is being reviewed

Thank you. We will get back to you by EOW or early next week, our team is at a trade show all week.

Thanks,

AW

---

**From:** Jacob Bevier <[bevier19jac@icloud.com](mailto:bevier19jac@icloud.com)>

**Sent:** Monday, November 3, 2025 10:04 AM

**To:** Andrew Wills <[awills@sprayproducts.com](mailto:awills@sprayproducts.com)>

**Cc:** Jim Johnson <[jjohnson@sprayproducts.com](mailto:jjohnson@sprayproducts.com)>; Sarah Braganini <[sarahjbraganini@gmail.com](mailto:sarahjbraganini@gmail.com)>; Joyce Stasky <[joyce@sprayproducts.com](mailto:joyce@sprayproducts.com)>

**Subject:** Re: Next Steps while MNDA is being reviewed

Yes this is the one we amended. I just went ahead and signed it as well.

Very respectfully, Jacob Bevier 7604903416

On Nov 3, 2025, at 9:54 AM, Andrew Wills <[awills@sprayproducts.com](mailto:awills@sprayproducts.com)> wrote:

Jacob,

Do you have an NDA that you would like to use? The one we sent is our standard MNDA which has already been vetted by counsel. If you have one you are more comfortable with

please send as amending our current MNDAs will take more time.

Thanks,

AW

---

From: Jacob Bevier <[bevier19jac@icloud.com](mailto:bevier19jac@icloud.com)>

Sent: Monday, November 3, 2025 9:47 AM

To: Andrew Wills <[awills@sprayproducts.com](mailto:awills@sprayproducts.com)>

Cc: Jim Johnson <[jjohnson@sprayproducts.com](mailto:jjohnson@sprayproducts.com)>; Sarah Braganini  
<[sarahjbraganini@gmail.com](mailto:sarahjbraganini@gmail.com)>; Joyce Stasky <[joyce@sprayproducts.com](mailto:joyce@sprayproducts.com)>

Subject: Re: Next Steps while MNDAs is being reviewed

Hey Andrew,

Hope you've all been doing well. I must have missed your note last week, but I've reattached both versions here — the original MNDAs with the redline revisions and our updated version that reflects our preferred language. Please let me know if anything needs clarification or if you'd like to set up a quick call to discuss.

I completely understand that legal reviews can take time, but we're eager to get this finalized so both sides can move forward. The sooner we have the NDAs squared away, the sooner our mechanical engineers can begin modeling the can dimensions and moving the prototype into the next stage.

We're really looking forward to collaborating and getting the ball rolling — this project has a ton of potential, and we're excited to make progress together.

Very respectfully, Jacob Bevier 7604903416

On Oct 29, 2025, at 12:44 PM, Andrew Wills  
<[awills@sprayproducts.com](mailto:awills@sprayproducts.com)> wrote:

Can you resend the red line version?

Thanks,

AW

---

**From:** Jacob Bevier <[bevier19jac@icloud.com](mailto:bevier19jac@icloud.com)>  
**Sent:** Wednesday, October 29, 2025 12:42 PM  
**To:** Andrew Wills <[awills@sprayproducts.com](mailto:awills@sprayproducts.com)>  
**Cc:** Jim Johnson <[jjohnson@sprayproducts.com](mailto:jjohnson@sprayproducts.com)>; Sarah Braganini  
<[sarahjbraganini@gmail.com](mailto:sarahjbraganini@gmail.com)>; Joyce Stasky <[joyce@sprayproducts.com](mailto:joyce@sprayproducts.com)>  
**Subject:** Re: Next Steps while MNDA is being reviewed

Yes we did change things, our legal team sent a whole  
different NDA.

Very respectfully, Jacob Bevier 7604903416

On Oct 29, 2025, at 12:30 PM, Andrew Wills  
<[awills@sprayproducts.com](mailto:awills@sprayproducts.com)> wrote:

Jacob,

I will have the NDA to you. You did not change anything within it correct?

Thanks,

AW

---

From: Jacob Bevier <[bevier19jac@icloud.com](mailto:bevier19jac@icloud.com)>

Sent: Wednesday, October 29, 2025 12:13 PM

To: Andrew Wills <[awills@sprayproducts.com](mailto:awills@sprayproducts.com)>

Cc: Jim Johnson <[jjohnson@sprayproducts.com](mailto:jjohnson@sprayproducts.com)>; Sarah Braganini

<[sarahjbraganini@gmail.com](mailto:sarahjbraganini@gmail.com)>; Joyce Stasky

<[joyce@sprayproducts.com](mailto:joyce@sprayproducts.com)>

Subject: Re: Next Steps while MNDA is being reviewed

Hi Andrew and Jim,

I hope you're both doing well. I just wanted to check in regarding the MNDA review and see if there's any feedback or revisions needed from your side. I completely understand how busy things can get, but we're very eager to move forward and start the next phase of development with you and your team.

Our entire group is genuinely excited about this collaboration and confident that Spray Products is the right partner to help bring this concept to life. Please let me know if there's anything you need from me to help keep things moving — I'm happy to adjust or clarify anything in the NDA if necessary.

Looking forward to hearing from you soon.

Very respectfully,  
**Jacob Bevier**  
Co-Founder | Brag & Bev LLC

On Oct 14, 2025, at 3:32 PM, Jacob Bevier  
<[bevier19jac@icloud.com](mailto:bevier19jac@icloud.com)> wrote:

Thanks Andrew, good to know. I know our legal team changed quite a bit so for me to say exactly what, would be doing you a disservice. I know they preferred it in Michigan but yes please review. There really is not a huge rush most of the team is offline for the next week.

Very respectfully, Jacob Bevier  
  
Brag & Bev LLC 7604903416

On Oct 14, 2025, at 3:10 PM, Andrew Wills  
<[awills@sprayproducts.com](mailto:awills@sprayproducts.com)> wrote:

Jacob,

I need to review the NDA, I did not see any markups so if you can advise what was changed that would help.

Thanks,

AW

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**From:** Jacob Bevier <[bevier19jac@icloud.com](mailto:bevier19jac@icloud.com)>

**Sent:** Tuesday, October 14, 2025 3:08 PM

**To:** Jim Johnson <[jjohnson@sprayproducts.com](mailto:jjohnson@sprayproducts.com)>

**Cc:** Andrew Wills <[awills@sprayproducts.com](mailto:awills@sprayproducts.com)>; Sarah Braganini <[sarahjbraganini@gmail.com](mailto:sarahjbraganini@gmail.com)>; Joyce Stasky <[joyce@sprayproducts.com](mailto:joyce@sprayproducts.com)>

**Subject:** Re: Next Steps while MNDA is being reviewed

Good afternoon,

I know everyone is busy and I just want to make some kind of contact. Definitely not trying to pester, just trying to be persistent. Especially after our great call, and the feedback Jim already gave in regards to his testing. Also want to make sure the NDA makes everyone happy.

I called up to Spray Products this afternoon and spoke to Joyce. She asked me to copy her into this conversation. Thank you Joyce and I appreciate you all. We are really looking forward to this collaboration!

Speak soon.



Very respectfully, Jacob Bevier

Brag & Bev LLC 7604903416

On Oct 14, 2025, at 9:04 AM, Jacob Bevier  
<[bevier19jac@icloud.com](mailto:bevier19jac@icloud.com)> wrote:

Hey Jim,

Hope you had a wonderful long weekend.  
Eager to speak to you so please reach out at  
your earliest convenience.

I had met with the team and told them you  
were already testing formulations and were  
excited to learn more about the full scope of  
the project. Everyone was extremely happy to  
hear I had found a possible solution, so if there  
are issues with the NDA or anything else please  
don't hesitate to let me know.

Hope to talk to you soon Jim!

Very respectfully,

Jacob Bevier

Brag & Bev LLC

7604903416

On Oct 6, 2025, at 11:56 AM, Jim Johnson  
<[jjohnson@sprayproducts.com](mailto:jjohnson@sprayproducts.com)> wrote:

Hi Jacob,

It was nice meeting you.

Not knowing your current devise  
concept, I worked on 2 prototypes last  
week.

1. Standard aerosol with a lock down  
fogger and a string attached to lower  
down into the container.
2. Standard aerosol with a lock down  
fogger and a base made of  
cardboard, to ensure the can is right  
side up, dropped down into the  
container.

Let's complete the NDA and we can get  
moving on this development.

Thanks! Jim

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**From:** [bevier19jac@icloud.com](mailto:bevier19jac@icloud.com)  
<[bevier19jac@icloud.com](mailto:bevier19jac@icloud.com)>  
**Sent:** Monday, October 6, 2025 10:28 AM  
**To:** Jim Johnson <[jjohnson@sprayproducts.com](mailto:jjohnson@sprayproducts.com)>  
**Cc:** Andrew Wills <[awills@sprayproducts.com](mailto:awills@sprayproducts.com)>;  
Sarah Braganini <[sarahjbraganini@gmail.com](mailto:sarahjbraganini@gmail.com)>  
**Subject:** Next Steps while MNDA is being reviewed

Hey Jim,

Hope you are well and had a great weekend!

I thought I was losing my mind and could only find my correspondence with Andrew and couldn't find your information.

Well, I finally found it, and I am reaching out to see what the next steps are as we have decided collectively that we would like to use your services. Obviously, the NDA is first, right now it is being reviewed by our legal team.

In the interim is there anything we can do? I really like our initial conversation, and I am eager to discuss this further and start putting the pieces of this puzzle together. Please let me know what you think, and I am available anytime.

Look forward to hearing from you Jim and  
have a great Monday! Talk soon.

Very respectfully,

Jacob Bevier

Co-founder

Brag & Bev LLC

760 490-3416

<Brag\_Bev\_NDA\_SprayProducts.pdf>

<Mail Attachment.eml>

<BragBev\_NDA\_Redlined (2).docx>



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